

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To amend the law relating to Cathedral Churches.
[31st July 1934.]

1. Without prejudice to the generality of the provisions of section two of the *Cathedrals Measure*, 1931, (in this Measure referred to as “the principal Measure”) defining the principal function of the Cathedral Commissioners for England (in this Measure referred to as “the Commissioners”) a scheme under the principal Measure may contain all or any of the following provisions, that is to say :—

General provisions as to schemes under the principal Measure.

- (i) such scheme may provide that any body of persons to whom this paragraph applies shall be a body corporate with perpetual succession and a common seal with power to hold land including rights of patronage to the extent defined by such scheme without licence in mortmain;

This paragraph shall apply to every cathedral chapter established under the principal Measure, and to every other cathedral chapter established in a cathedral church which is not a body corporate or which being a body corporate should, in the opinion of the Commissioners, be re-incorporated, to every cathedral council established under the principal Measure, and to every other body established under the principal Measure or otherwise in a cathedral church;

- (ii) such scheme may (subject in any case where a cathedral council is established under section eleven of the principal Measure to the provisions of subsection (5) of that section) determine the body by which the powers and duties conferred and imposed by the principal Measure upon the

consenting body of the cathedral church to which the scheme relates shall be exercised and performed ;

- (iii) such scheme may, where the dean and chapter of the cathedral church to which the scheme relates as at present constituted consists of the dean and all the canons and prebendaries (whether residentiary or not), provide either that the body so constituted shall act both as the general cathedral chapter and as the administrative chapter, or that the administrative chapter shall consist of the dean and such of the canons and prebendaries as may be laid down by the scheme ;
- (iv) such scheme may determine or provide for regulating from time to time the number of residentiary canonries in the cathedral church to which the scheme relates and give effect to such determination by such creation, suppression or suspension of residentiary canonries as may be requisite, and so that after the scheme has become effectual in law any existing statutory determination of the number of residentiary canonries in such cathedral church (whether contained in the schedule to the Ecclesiastical Commissioners Act, 1840, or in any other statute or Measure) shall cease to apply to such cathedral church ;
- (v) such scheme may determine or provide for regulating from time to time the number, or the maximum and minimum numbers, of minor canonries in the cathedral church to which the scheme relates, and so that after such scheme has become effectual in law the provisions of the Ecclesiastical Commissioners Act, 1840, and of any regulations made thereunder fixing such number or such maximum and minimum numbers shall cease to apply to such cathedral church.

3 & 4 Vict.
c. 113.

Provisions
as to
schemes
relating to

2.—(1) In their application to a parish the parish church of which is a cathedral church, the Parochial Church Councils (Powers) Measure, 1921, and the Rules for the Representation of the Laity contained in the

Representation of the Laity Measure, 1929, shall have effect subject to the provisions of any scheme under the principal Measure relating to such cathedral church. parish
church
cathedrals.

(2) Such scheme may also provide—

- (a) for the abolition of the jurisdiction of the consistory court of the diocese over such cathedral church and the churchyard thereof in respect of the granting of faculties;
- (b) for conferring on the cathedral chapter or on the cathedral council of such cathedral church or on any other similar body established therein, or partly on one and partly on another of those bodies, but subject to any limitations or conditions expressed in the scheme, all or any of such powers in respect of the fabric, monuments, and ornaments of the cathedral church, and alterations of and additions to the same, and matters connected therewith, and in respect of the churchyard, as are commonly exerciseable by the cathedral chapter in cathedral churches which are not parish churches; and
- (c) for making any chapel or other part of such cathedral church exclusively parochial and for conferring and imposing on the parochial church council of the parish to the exclusion of any other body any powers, duties and liabilities in connection therewith.

3. In calculating the income of a dean or a canon for the purposes of section sixty-six of the Ecclesiastical Commissioners Act, 1840, and any Order in Council made thereunder, any share of the dean or the canon in any grant made under section twenty of the principal Measure shall not be taken into account, nor, if a scheme under the principal Measure so provides, shall there be taken into account any sum paid under the scheme in augmentation of the income. Calculation
of income
under
section 66
of 3 & 4
Vict. c. 113.

4.—(1) No sale or other disposition whether made for valuable consideration or not (including a sale or disposition giving effect to an antecedent contract) of any real or personal property subject to compulsory Transfers
of property
by minor
corpora-
tions.

transfer under section thirteen of the principal Measure shall be valid unless such disposition, in addition to complying with all other conditions imposed by law, shall be made with the consent of the Ecclesiastical Commissioners and the cathedral chapter of the cathedral church concerned respectively.

(2) After the passing of this Measure an affected sale or other disposition of any such property made in breach of the preceding subsection before the compulsory transfer thereof is carried out shall be void.

Provisions
as to loans
under
section 59
of 3 & 4
Vict. c. 113.

5.—(1) Where a scheme under the principal Measure provides for transferring to and vesting any residence house attached to any dignity or office in a cathedral church in the cathedral chapter, or provides that the liability for the structural repairs of any such house shall be borne by the cathedral chapter, the following provisions shall have effect (that is to say)—

- (i) if at the time when the scheme comes into operation there is outstanding any loan for the building, enlarging or otherwise improving of the house made by Queen Anne's Bounty under the existing statutory provisions, the liability for the loan shall, if the scheme so provides, be transferred to the cathedral chapter, and the loan shall become charged on the capitular revenues instead of on the revenues and possessions of the dignity or office;
- (ii) after the scheme comes into operation the existing statutory provisions shall be extended so as to authorise loans by Queen Anne's Bounty to the cathedral chapter for building or purchasing new houses of residence for occupation by holders of dignities or offices in the cathedral church, or for re-building, enlarging or otherwise improving either such houses or any house transferred to the cathedral chapter, or for the structural repairs of which the cathedral chapter has become liable as aforesaid;
- (iii) all such loans shall be made upon the security of the capitular revenues in accordance *mutatis mutandis* with the existing statutory provisions, including the provisions transferring mortgages

or charges to the purchase money in the event of a sale, and so that in addition to any other remedies the Ecclesiastical Commissioners may in the event of any interest or any instalment of principal payable in respect of any such loan being in arrear and unpaid for thirty days, on receiving an application from Queen Anne's Bounty, pay the amount in arrear to Queen Anne's Bounty out of any money payable by them to the cathedral chapter.

(2) In this section the expression "existing statutory provisions" means the provisions of section fifty-nine of the Ecclesiastical Commissioners Act, 1840, and such of the provisions of the Loans (Incumbents of Benefices) Amendment Act, 1918, and of the Acts mentioned in the First Schedule thereto as are applicable to a loan made under the said section of the said first-mentioned Act. 8 & 9 Geo. 5. c. 42.

6. Section three of the principal Measure (which relates to consenting bodies of cathedral churches) shall have effect as if the cathedral church of Liverpool had never been inserted in the Second Schedule to the principal Measure, and as if the following paragraph had always been inserted between paragraphs (ii) and (iii) of subsection (1), namely:—

“(iia) In the case of the cathedral church of Liverpool the principal chapter as defined by the statutes of that cathedral church established under an Order in Council dated the 29th day of June, 1931; and”

7. If a cathedral chapter of the cathedral church of Newcastle shall be established by a scheme under the principal Measure and constituted a body corporate with powers to hold rights of patronage, such cathedral chapter shall for all the purposes of section twelve of the Newcastle Chapter Act, 1884, (which relates to the transfer of the patronage of benefices in the diocese of Newcastle) be deemed to be the dean and chapter of Newcastle mentioned in that section. Provisions relating to patronage of certain benefices in the diocese of Newcastle. 47 & 48 Vict. c. 33.

8. The proviso to section nineteen of the Ecclesiastical Commissioners Act, 1850, (which imposes a limitation upon the value of the benefice which may be held by the dean of a cathedral church) shall have effect Amendment of proviso to section 19 of 13 & 14 Vict. c. 94.

as if the words “except with the consent of the bishop and of the Ecclesiastical Commissioners” were added at the end thereof.

Section 12 of the principal Measure not to apply to Durham cathedral.

9. Section twelve of the principal Measure shall not apply to land forming part of the endowment of the Cathedral Church of Durham.

Transfer of stock.

10. The following provisions shall be added to section sixteen of the principal Measure (that is to say):—

“The production of a copy of such scheme purporting to be sealed with the common seal of the Commissioners shall be sufficient authority to any company in whose books any stock transferred by such scheme is standing to transfer the stock into the name of the transferee named in such scheme and to pay the dividends thereon to such transferee, and such stock shall be transferred and such dividends paid accordingly.

‘Company’ includes the Bank of England and any company or person keeping books in which any stock is registered or inscribed.

‘Stock’ includes any share, annuity or other security.”

Interpretation.

11. In this Measure—

the expression “churchyard” includes a closed churchyard;

the expression “minor canonry” includes the office held by any clerk in Holy Orders, however designated, who performs the duties of a minor canon in a cathedral church.

Short title, &c.

12. This Measure may be cited as the Cathedrals (Amendment) Measure, 1934, and shall be construed as one Measure with the principal Measure, and these Measures may be cited together as the Cathedral Measures, 1931 and 1934.